

tageous to society. While executives such as the Attorney General of the United States or a senior assistant to the President of the United States must have the latitude to take action in legally uncharted areas without constant exposure to damages suits, and are therefore entitled to a rule of qualified immunity from many pretrial and trial proceedings, quite different considerations led the Second Circuit to recognize the affirmative defense of reasonable good faith in the *Bivens* case. Today this Court nevertheless makes the fundamental error of simply assuming that *Harlow* immunity is just as appropriate for federal law enforcement officers such as petitioner⁷ as it is for high government officials.⁸ The doctrinal reach and precedential sweep of this moment of forgetfulness are multiplied because of the interchangeability of immunity precedents between § 1983 suits against state officials and *Bivens* actions against federal officials. Moreover, for the moment restricting my criticism of the Court's analysis to the four corners of the *Harlow* framework, the Court errs by treating a denial of immunity for failure to satisfy the *Harlow*

⁷"Is it not inferable that the point of the remand [to the Court of Appeals in *Bivens*] was to ventilate the question of the possible existence of the kind of qualified privilege the Court of Appeals sustained, rather than the issue of immunity?" P. Bator, P. Mishkin, D. Shapiro, & H. Wechsler, Hart and Wechsler's *The Federal Courts and the Federal System* 1421 (2d ed. 1973).

⁸The Court asserts that this assumption merely reflects our holding last Term in *Malley v. Briggs*, 475 U. S., at 340. See *ante*, at 642, n. 4. The *Malley* case, however, rejected a police officer's claim that he was entitled to absolute immunity because he had acted pursuant to an arrest warrant issued by a magistrate. We specifically declined to accept the petitioner's invitation "to expand what was a qualified immunity at common law into an absolute immunity." 475 U. S., at 342. We concluded that in "the case of the officer applying for a warrant" a rule of qualified immunity based on the *Harlow* standard would give "ample room for mistaken judgments." 475 U. S., at 343. Our opinion carefully avoided any comment on warrantless searches or the proper application of *Harlow* in cases in which the claim of "qualified immunity" could not be evaluated in advance of discovery.